

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eliana Behar	Team: Squad #01	CCRB Case #: 202001446	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 02/20/2020 4:40 PM	Location of Incident: Sutter Avenue and Snediker Avenue	18 Mo. SOL 4/6/2022	Precinct: 75		
Date/Time CV Reported Thu, 02/20/2020 4:53 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 02/20/2020 4:53 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Christopher Musa	03353	952040	073 PCT
2. POM Marlon Sanchez	23417	951199	073 PCT
3. POM Louis Aponte	07454	957850	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Louis Aponte	Abuse: Police Officer Louis Aponte stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . SGT Christopher Musa	Abuse: Sergeant Christophe Musa refused to provide his shield number to § 87(2)(b)	B . Unfounded
C . POM Marlon Sanchez	Abuse: Police Officer Marlon Sanchez refused to provide his shield number to § 87(2)(b)	C . Unfounded
§ 87(4-b), § 87(2)(g)		
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Case Summary

On February 20, 2020 § 87(2)(b) filed a complaint with the CCRB over the phone.

On February 20, 2020, at approximately 4:40pm, § 87(2)(b) was pulled over by an unmarked police vehicle on Sutter Avenue and Snediker Avenue in Brooklyn, NY. Police Officer Marlon Sanchez, Police Officer Louis Aponte, and Sergeant Christopher Musa, of the 73rd Precinct, approached § 87(2)(b)'s vehicle and told § 87(2)(b) that he failed to signal within 75ft of the left turn lane (**Allegation A: Abuse of Authority--Exonerated**). While speaking to the officers through his driver's side window, § 87(2)(b) asked all three officers for their shield numbers. Sgt. Musa and PO Sanchez did not provide § 87(2)(b) with their shield numbers (**Allegation B and C: Abuse of Authority—Unfounded**). § 87(2)(b) was not arrested or issued any summonses.

§ 87(4-b), § 87(2)(g)

The investigation obtained Body Worn Camera videos of this incident from PO Sanchez, PO Aponte, and Sgt. Musa. There are four BWC videos in total (Board Review 02-05).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Louis Aponte stopped the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that on February 20, 2020 PO Sanchez, PO Aponte, and Sgt Musa pulled over § 87(2)(b) who was driving a White Acura TL on Sutter Avenue and Snediker Avenue in Brooklyn.

§ 87(2)(b) stated that he put on his left turn signal when he approached the intersection of Mother Gaston Boulevard and Sutter Avenue where he waited in the left turn lane for the light to turn § 87(2)(b) and then made a left turn going east on Sutter Avenue. § 87(2)(b) continued driving on Sutter Avenue and an unmarked black Ford Fusion pulled him over on Sutter Avenue and Snediker Avenue. PO Sanchez and PO Aponte approached § 87(2)(b) at his driver's side window while Sgt. Musa approached the front passenger's side of his vehicle where § 87(2)(b)'s girlfriend, § 87(2)(b) was seated. § 87(2)(b) asked PO Aponte and PO Sanchez why they stopped him, and PO Aponte told § 87(2)(b) that he did not signal within 75ft. of making the left turn onto Sutter Avenue (Board Review 01).

At 00:25 of PO Aponte's BWC (1 of 2) he is driving behind § 87(2)(b) who is in the left turn lane waiting at the light on Mother Gaston Boulevard to make a turn onto Sutter Avenue. § 87(2)(b) does not have his left turn signal on (Board Review 02). At 00:30 of PO Aponte's BWC (2 of 2), PO Aponte approaches § 87(2)(b)'s front driver's side window and speaks to § 87(2)(b). PO Sanchez is standing to the right of PO Aponte next to the rear driver's side door, and Sgt. Musa is standing next to the front passenger window. At 00:42 § 87(2)(b) asks PO Aponte what the car stop is for, and PO Aponte tells him that he didn't signal 75ft before making a left turn (Board Review 04).

At 00:35 of Sgt. Musa's BWC, Sgt. Musa approaches the front passenger side of § 87(2)(b)'s vehicle, where § 87(2)(b) is seated. § 87(2)(b)'s window is rolled down and she says to Sgt. Musa, at 0:43, "why are y'all stopping me?" Sgt. Musa responds and says that § 87(2)(b) didn't signal before making a left turn (Board Review 03).

PO Aponte recalled being the driver of the vehicle and conducting a car stop, but he could not independently recall who he stopped on this date or the reasoning behind the car stop. After being shown a photo of § 87(2)(b) PO Aponte recalled that he observed § 87(2)(b) commit a vehicle infraction and pulled him over. PO Aponte did not recall what infraction § 87(2)(b) committed but PO Aponte used his discretion and did not issue § 87(2)(b) a summons (Board Review 08).

According to VTL Section 1163 a person must signal intention to turn right or left no less than 100 feet before making a turn (Board Review 10).

PO Aponte's BWC confirms that § 87(2)(b) was in violation of VTL Section 1163 when he made a left turn at Mother Gaston Boulevard onto Sutter Avenue without using his turn signal. § 87(2)(g)

it is recommended that **Allegation A** be closed as **Exonerated**.

Allegation (B) Abuse of Authority: Sergeant Christophe Musa refused to provide his shield number to § 87(2)(b)

Allegation (C): Abuse of Authority: Police Officer Marlon Sanchez refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) stated that when he stopped, PO Aponte approached his window, and asked for his license and registration, which he provided, and then § 87(2)(b) through his open driver's side window, asked PO Aponte, PO Sanchez, and Sgt. Musa for their shield numbers. PO Aponte verbally provided his shield number, while PO Sanchez and Sgt. Musa did not respond. § 87(2)(b) tried to take a video on his cell phone but it did not save (Board Review 01).

In PO Aponte's BWC, at 00:30 PO Aponte approaches the front driver's side window and speaks to § 87(2)(b) who is seated in the driver's seat of the vehicle. § 87(2)(b) has his cellphone out and is pointing it at PO Aponte who he is making eye contact with while speaking to him. While his phone is facing PO Aponte, § 87(2)(b) at 00:33, asks PO Aponte for his badge number. At 00:35 PO Aponte states "my name is officer Aponte, 7454. Here's my shield, take a picture" and holds his shield out in front of him toward § 87(2)(b). At 01:00, § 87(2)(b) asks PO Aponte, "What's your badge number again? Flip it around for the camera." PO Aponte responds, "7454; take a picture" while holding up his badge toward § 87(2)(b) in the same manner as he did previously. PO Sanchez is standing to the right of PO Aponte and Sgt. Musa is standing by the front passenger's door. At 01:28, § 87(2)(b) rolls her window all the way up. At 02:17, § 87(2)(b) leans into his car toward § 87(2)(b) and says, "Who's this one right here? What's his badge number? That's the sergeant." (Board Review 04). § 87(2)(b) does not make a request for shield number directly to Sgt. Musa or PO Sanchez (Board Review 05).

BWC footage captures § 87(2)(b) speaking directly to PO Aponte and asking only him for his shield number. At no point does § 87(2)(b) ask PO Sanchez or Sgt. Musa for their shield numbers. § 87(2)(g)

it is recommended that **Allegations B and C** be closed as **Unfounded**.

§ 87(4-b), § 87(2)(g)

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- 201510149 involved one substantiated allegation of refusal to provide name/shield. The board recommended Command Discipline A and the NYPD imposed instructions.
- § 87(2)(g) [REDACTED]
- Sgt. Musa has been a member of service for nine years and has been a subject in eight prior CCRB complaints and 13 allegations, of which two were substantiated.
 - 201605419 involved one substantiated allegation of a frisk, and one substantiated allegation of a vehicle search. The board recommended formalized training, and the NYPD imposed instructions.
 - § 87(2)(g) [REDACTED]

Mediation, Civil and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
- As of February 3, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 12).

Squad No.: 1

Investigator:	<u>Eliana Behar</u> Signature	<u>Inv. Behar</u> Print Title & Name	<u>05/26/21</u> Date
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Squad Leader:	<u>Mgr. Joy Almeyda</u> Signature	<u></u> Print Title & Name	<u>5.27.21</u> Date
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Reviewer:	<u></u> Signature	<u></u> Print Title & Name	<u></u> Date
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